

DEPARTMENT OF EDUCATION

Colorado State Board of Education

RULES FOR THE ADMINISTRATION OF THE NINTH GRADE SUCCESS GRANT PROGRAM

1 CCR 301-106

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

1.0 Statement of Basis and Purpose.

These rules are promulgated pursuant to section 22-14-110, C.R.S., which requires the Colorado State Board of Education (State Board) to promulgate rules as may be necessary to implement the provisions of Article 14 of Title 22, including rules required pursuant to section 22-14-109.5 for the Ninth Grade Success Grant Program.

The Ninth Grade Success Grant Program provides funding to local education providers and charter schools to assist students enrolled in ninth grade to develop the skills they need to successfully persist in high school graduation and succeed in their education and professional careers.

2.0 Definitions

- 2.1** "Charter school" means a charter school authorized by a school district pursuant to Part 1 of Article 30.5 of Title 22, C.R.S., or an institute charter school authorized by the state charter school institute pursuant to Part 5 of Article 30.5 of Title 22, C.R.S.
- 2.2** "Evidence-Informed" means a program or practice in mathematics that relies on peer-reviewed evidence to establish a basis for accelerating learning. "Evidence-informed" includes evidence-informed curricula, interventions, acceleration strategies, and assessment options.
- 2.3** "Local education provider" means a school district, a board of cooperative services created pursuant to article 5 of Title 22, C.R.S., or the state charter school institute created pursuant to section 22-30.5-503, C.R.S.
- 2.4** "Small rural school district" means a school district in Colorado that the Colorado Department of Education determines is rural based on the geographic size of the school district and the distance of the school district from the nearest large, urbanized area, and that enrolls fewer than one thousand students in kindergarten through twelfth grade.
- 2.5** "Success team" means a cross-disciplinary team of ninth-grade teachers and support staff as described section 22-14-109.5(5), C.R.S.

3.0 Eligibility

- 3.1** A local education provider or charter school that serves students enrolled in grades nine through twelve may apply for funding under the Ninth Grade Success Grant Program. Each Ninth Grade Success Program must ensure that all ninth-grade teachers receive information concerning the incoming ninth-grade students before the start of the school year and receive professional development concerning how to use the information to inform instruction for the students.
- 3.2** An alternative education campus designated pursuant to section 22-7-604.5, C.R.S., may not apply for or receive money or services through the Ninth Grade Success Grant Program.

4.0 Allowable Uses of Funds

4.1 Grant funding must be used to implement a ninth grade success program that, at a minimum, includes the following elements outlined in section 22-14-109.5(5), C.R.S.:

- 4.01(1) Creating and implementing a cross-disciplinary success team of ninth grade teachers and support staff, which must include at least one school counselor, school mental health professional, or school social worker. To the extent practicable, a success team must include all of the ninth-grade teachers who teach core courses, as defined in section 22-11-503.5. The local education provider or charter school shall designate a member of the success team to serve as the success team leader and reduce the team leader's workload to a level that allows the team leader sufficient time to complete the leadership duties, which include team logistics, preparing team meeting agendas, and facilitating team meetings;
- 4.01(2) The success team must meet at least every two weeks, to the extent practicable, throughout the school year to collaborate on identifying and implementing strategies to improve outcomes for ninth-grade students who are found to be at risk of dropping out of school before graduation and to address systems-level barriers to success for all ninth-grade students. The strategies must be informed by information concerning, at a minimum, ninth-grade students' behavior, attendance, and grades across demographic categories and student groups. The local education provider or charter school shall allow success team members time during the work day for planning and collaboration or provide incentives to meet outside of the work day;
- 4.01(3) In analyzing such information the grantees, and those with whom they contract with or accept free services from, shall comply with state and federal laws to protect the privacy of student information including the Colorado Student Data Transparency and Security Act (see C.R.S. 22-16-101 et seq.).
- 4.01(4) Organizing the school staff to ensure that, to the extent practicable, the ninth-grade classes are taught by a single group of teachers who teach only or mostly ninth-grade classes;
- 4.01(5) Implementing a information system that provides real-time access to integrated information concerning a student's behavior, attendance, and grades and provides the ability to compare the information across demographic categories and student groups;
- 4.01(6) Identifying and prioritizing services for ninth-grade students who are at risk of academic failure in ninth grade;
- 4.01(7) Providing instructional support for ninth-grade students including attendance support, content-specific academic interventions, tutoring, course-completion programs, social-emotional learning, and trauma-informed instruction;
- 4.01(8) Ensuring that school leadership, school counselors, and key members of the success team receive and review information on all incoming ninth-grade students and plan course work and supports for the students based on the information received;
- 4.01(9) Ensuring that all ninth-grade teachers receive information concerning the incoming ninth-grade students before the start of the school year and receive professional development concerning how to use the information to inform instruction for the students. To the extent possible, the local education provider or charter school shall ensure that middle school teachers provide information to ninth-grade teachers concerning the incoming ninth-grade students;

- 4.01(10) Providing summer orientation for incoming ninth-grade students and their parents to introduce students to the behavioral and academic expectations of high school; and
- 4.01(11) Evaluating with rigor the impact of the interventions provided through the Ninth Grade Success Grant Program on student attendance, behavior, course completion, academic results, discipline rates, teacher surveys, student surveys, dropout rates, and graduation rates as the information becomes available for ninth-grade students who receive interventions through the Ninth Grade Success Grant Program. Such evaluation must be disaggregated by school and by student groups.

5.0 Application Requirements

- 5.1 A local education provider or charter school that is selected to receive a grant must, as a condition of accepting the grant, provide a grant match. Grant matches may include in-kind contributions, meaning donations of goods or services, rather than funding. Grant matches cannot include funding from other state or federal grants. Grant matches must be obtained for the following amounts:

- 5.01(1) For a local education provider that is a small rural school district or for a charter school, fifteen percent of the grant amount; and

- 5.01(2) For all other local education providers, twenty-five percent of the grant amount.

- 5.2 Grant applications must include the following information:

- 5.02(1) The applicant's four-year graduation rate for the three preceding school years for the districts and schools;

- 5.02(2) The applicant's plan for implementing a ninth grade success program that, at a minimum, includes the elements described in section 4.01 of these rules, above, and an explanation of how such program will improve the success of students enrolled in ninth grade;

- 5.02(3) Whether the applicant already has in place an information system that allows school leaders and teachers real-time access to integrated information concerning a student's behavior, attendance, and grades and allows comparison of the information across demographic categories and student groups;

- 5.02(4) For a local education provider, designation of the schools in which the local education provider will use the grant money to implement ninth grade success teams; and

- 5.02(5) Indication of the applicant's ability to provide the required grant match and any type and value of in-kind contribution that the applicant may provide.

- 5.02(6) If applicable, information on the applicant's proposed programming focused on evidence-informed mathematic skills, intervention strategies, and acceleration strategies.

6.0 Application Review Criteria

- 6.1 The Colorado Department of Education (Department), in making recommendations to the State Board, and the State Board, in awarding grants, shall:

- 6.01(1) Consider the degree to which the applicant's plan addresses all of the required elements outlined in section 22-14-109.5(5), C.R.S. and the likelihood that the applicant will implement the plan effectively to improve the success of ninth-grade students.

6.01(2) Prioritize applicants that:

6.01(2)(a) Have a four-year graduation rate that, over the preceding three school years, has consistently ranked within the lowest twenty-five percent of the four-year graduation rates for public high schools in Colorado;

6.01(2)(b) Propose programming focused on evidence-informed mathematics skills, intervention strategies, and acceleration strategies, including a focus on students who are below grade level or struggling in mathematics; and

6.01(2)(c) Have academic achievement levels in mathematics that are consistently ranked the lowest for public high schools in the state, as determined by the department and which may include PSAT scores, on-track metrics, or ninth grade course passage.

6.01(3) To the extent possible, ensure that grant recipients vary in student population size and are located in urban, suburban, and rural areas throughout the state.

7.0 Application Timelines and Duration of Grant Awards

7.1 For initial grant awards, applications will be released in September of the fiscal year in which funding is available and the State Board will award grants by January. Grant funding may be approved for up to a four and a half-year term, subject to available appropriations.

7.2 The State Board shall award any continuation grants for those grantees who were previously approved for an initial grant award on an annual basis by July 1st of each applicable fiscal year.

8.0 Grant Reporting

8.1 Each local education provider and charter school that has received funding must provide information to the Department concerning the implementation of the Ninth Grade Success Program and the evaluation of impact. The Department shall specify, in the grant application materials, the information to be reported.

8.2 For the first cohort of grants awarded in the 2019-20 academic school year, grant recipients must submit information by no later than June 30, 2020 in the first year, and by no later than July 30, in subsequent years. For subsequent cohorts, grant recipients must submit their information by no later than July 30, annually.

8.3 Dropout rates and graduation rates must be reported as the information becomes available for ninth-grade students who have received interventions through the Ninth Grade Success Grant Program.

Editor's Notes

History

New rule emer. rule eff. 08/29/2019.

Entire rule eff. 11/30/2019.

Entire rule eff. 11/14/2023.